

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR MAY 28, 2026, AT 8:30 A.M.

Courts do not require perfect adherence to the claim requirements. Instead, the doctrine of substantial compliance applies. (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 38.) “The test for substantial compliance is whether the fact of the filed claim discloses sufficient information to enable the public entity to make an adequate investigation of the claim’s merits and settle it without the expense of litigation.” (*Ibid.*) However, the doctrine of substantial compliance will not “cure total omission of an essential element form the claim or remedy a plaintiff’s failure to comply meaningfully with the statute.” (*Ibid.*)

Compliance with the claim presentation requirement is an element of plaintiff’s cause of action. (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1236.)

Here, when taking the factual allegations in the SAC as true, plaintiff does not allege facts sufficient to state her filed claim with defendant complied or substantially complied with Government Code section 910. Specifically, the claim does not provide sufficient information about the location and circumstances surrounding the occurrence for defendant to be in a position to investigate the condition of the premises.

Defendant’s notice of insufficiency provided adequate information regarding the claim’s insufficiencies. (Gov. Code, § 910.8.) Plaintiff did not thereafter amend her claim.

Additionally, the time has lapsed for plaintiff to cure her deficient claim. (Gov. Code, §§ 910.6, 911.2, 911.4.)

Accordingly, defendant’s demurrer is sustained without leave to amend.

8. S-CV-0055904 AGOSTINI, CAROLYN v. AGOSTINI, SEBASTIEN

Hearing to Appoint Referee

On April 30, 2026, the court granted plaintiff’s motion for summary adjudication as to the second cause of action for partition by sale. The court’s ruling set a hearing for May 28, 2026, to allow the parties to meet and confer to select a mutually agreed upon referee.

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The court is required to appoint a referee to sell property. (Code Civ. Proc., § 873.010, subds. (a)–(b).) The court may not appoint as referee an ineligible person within the meaning of Code of Civil Procedure section 873.050.

The court hereby appoints Chad Phillips as the referee to sell the real property located at 1245 Pinto Court, Auburn, California, 95603, County of Placer, APN: 040-400-034-000. Chad Phillips's 1% fee of the gross sale price of the subject property shall be paid from the escrow proceeds at the close of sale. (Code Civ. Proc., § 873.010, subd. (b)(3).)

9. S-CV-0056212 JIANG, ELSA v. CREATIVE ARTS & MUSIC CENTER

Petition for Approval of Minor's Compromise Claim (Elsa Jiang)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

10. S-CV-0056302 ODER, WILLIAM v. MCGUIRE, REBECCA

The demurrer is dropped from calendar in light of plaintiff filing a full dismissal without prejudice as to the complaint with the court on May 26, 2026.

11. S-CV-0057044 IN RE THE PETITION OF TRAINER, BRIAN

Petition for Approval of Minor's Compromise Claim (Amelia Trainer)

Petitioner elects to place the settlement funds with a Bank of America branch in South Carolina. However, Form MC-350 requires the funds to be placed in a financial institution in this state. (¶18(b)(2).) Accordingly, the petition for approval of minor's compromise claim is continued to **June 25, 2026, at 8:30 a.m. in Department 3**. Petitioner, or their counsel of record, shall file a supplemental declaration on or before **June 17, 2026**, that affirms the funds will be placed in a financial institution in California or selects another option in Paragraph 18(b).

12. S-PR-0005952 JULIUS, IRENE - IN RE THE TRUST OF

The motion for assignment order is continued to **June 4, 2026, at 8:30 a.m. in Department 3**.